

CAPSTONE PRODUCTION CIM312 - MAJOR PROJECT

Crew Agreement Form

SAE Institute, Perth
116-120 Roe Street, Northbridge, WA 6003



Soapbox - HOD Agreement Terms

Capstone Production - CIU312 Major Project 23T3 - CONTRACTING OUTLINE	
Standard Agreement Outline	The Standard Agreement Outline to be followed by each producer is as follows: CHAIN OF TITLE AGREEMENTS: • All contracting is to be managed by the Producer (“you”) • The producing entity for each project is to be clearly agreed prior to the commencement of contracting. • You are to complete the Agreement Term Forms with the assistance of your facilitator or mentor (“Facilitator/Mentor”). • If your project is one with diversity or Indigenous content (“Diverse/Indigenous Projects”), your Facilitator/Mentor will provide guidance on how rights will be held between the Producer and the Diverse/Indigenous Storyteller – this will be included in Item 13 of the Agreement Term Form. • Other than for Diverse/Indigenous Projects, it is expected that key creative agreements will include a full assignment of rights and moral rights consent. • You are to negotiate all terms with your creative team to ensure all terms are agreed prior to presenting the agreement for signing. • If your project is based on material that is not owned by you, i.e. it is based on third-party-owned underlying work, proof of option or copyright must be presented.

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AGREEMENT TERM FORMS

PLEASE COMPLETE EACH SECTION

ITEM 0 - CREW EXPECTATIONS	
Baseline Expectations For All Crew Members Throughout Production:	Every crew member involved with the production must adhere to these core behaviours: PROFESSIONALISM • <i>Input expectations regarding professionalism.</i> COMMUNICATION • <i>Input expectations regarding communication.</i> COLLABORATIVE EFFORT • <i>Input expectations regarding collaborative effort.</i>

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ITEM 1 - PRODUCTION DETAILS	
Film Title:	Soapbox
Film Type:	Drama/Factual: Drama Genre: Drama, Comedy, Coming of Age Duration: 8 -15 minutes Format: Short Film
Producer Name: (Contracting Party)	Peter Packard
Producer Address: (Contracting Party)	29 Hamilton St, Bayswater 6053
Diversity and/or Indigenous:	Is the Film a Diverse or Indigenous Project? Please confirm with Screenwest and indicate: ☐ YES, Diverse Film ☐ YES, Indigenous Film ☒ NO If Yes, Please complete Item 15
Underlying Work:	Is there any underlying work relevant to the Film? ☒ NO - The Film is an original work by the Producer ☐ YES - There is an underlying work for the Film (Book, Short Story, Short Film, a Life Story, Existing Script/Outline etc.) If YES, please detail what the underlying work is, if any existing agreements regarding the rights to the underlying work have been obtained and please send copies of all existing agreements to BSL with this Form: _____ _____
Production Schedule:	Commencement of Pre-Production: 1/11/2023 Commencement of Principal Photography: 11/1/2024 Completion of Principal Photography: 18/1/2024 Commencement of Post-Production: 19/1/2024 Completion of Rough Cut: 14/3/2024 Completion of Fine Cut: 29/3/2024 Completion of Film: 26/4/2024 Delivery Date: 28/4/2024

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ITEM 2 - WRITER	
Writer Name:	Tom Rees
Writer Address:	3/14 Burford Place, North Fremantle
Fee:	☐ Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: ☒ Nominal Fee: AUD\$1.00
Delivery Date/(s) for Commissioned Work (including drafts please indicate dates for each required):	• First Draft of Treatment/Script: • Polish of First Draft: • Second Draft of Treatment/Script: • Polish of Second Draft: • Shooting Script/Final Treatment:
Credit:	<u>writer</u> <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright and sequel and spin off rights) to the Producer; • Moral rights waiver/consent from the Writer for the benefit of the Producer. • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____ _____

(NOTE: If additional writers are required please add pages here and outline the split in services between each writer – note that additional fees may be incurred)

Tom Rees

.....
Name

DocuSigned by:

Tom Rees

.....
Signature

C05D4178F0024D7...

11/23/2023

.....
Date

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ITEM 3 - DIRECTOR	
Director Name:	Anna Rochfort
Director Address:	4/37 Etwell Street East Victoria Park 6101
Director Services: (please indicate what services the Director is commissioned to provide)	☒ Review/consultation on Script/Treatment ☒ Assisting in selection of cast/participants, locations/sets, music, archive (as required) ☒ Directing principal photography ☒ Supervising post production ☒ Participating in publicity for the Film Other: _____
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____; and • AUD\$_____ on _____: ☒ Nominal Fee: AUD\$1.00
Engagement Period:	☒ From Commencement of Pre-Production until Delivery of the Film on a non-exclusive but first priority basis; ☐ Other: _____ (Please specify)
Credit:	<u>Director</u> <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright and sequel and spin-off rights) to the Producer; • Moral rights waivers/consents from Director for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____ _____ _____

(NOTE: If additional Directors are required please add pages here and outline the split in services between each director – note that additional fees may be incurred)

Anna Rochfort

Name

DocuSigned by:

 Signature

11/23/2023

Date

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ITEM 4 - PHYSICAL PRODUCER (Pre-Production Lead)	
Physical Producer Name:	Peter Packard
Physical Producer Address:	29 Hamilton Street, Bayswater 6053, WA
Status of Physical Producer (please indicate as applicable)	Is the Physical Producer: ☐ Also, the Producer (contracting party) acting as a sole trader ☐ A director of the Producer (Pty Ltd) (contracting party) ☐ An employee of the Producer (Pty Ltd) (contracting party) ☐ A director and employee of the Producer (Pty Ltd) (contracting party) ☒ None of the Above.
Fee: please indicate which is applicable)	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____; and • AUD\$_____ on _____: ☒ Nominal Fee: AUD\$1.00
Physical Producer Services: (please indicate what services the Physical Producer is commissioned to provide)	☒ Managing the day to day production of the Film ☒ Review/consultation on Script/Treatment ☒ Assisting in the selection of cast/participants, locations/sets, music, etc. ☒ Preparing the Budget and Production Schedule ☒ Managing the engagement of all cast and crew ☒ Completing all reporting requirements ☒ Coordinating the Marketing/Exploitation of the Film ☒ Managing the OH&S compliance of the Film ☒ Coordinating the completion and delivery of the Film Other: _____ (Please note: If more than 1 Physical Producer please provide us with a detailed breakdown of what each physical producer is responsible for)
Engagement Period:	☒ From Commencement of Pre-Production until Delivery of the Film on a non-exclusive but first-priority basis; ☐ Other: _____(Please specify)
Credit:	Producer _____ (Please include credit to be provided)
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright and sequel and spin-off rights) to the Producer; • Moral rights waivers/consents from Physical Producer for the benefit of the Producer; • Inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____

Peter Packard

Name

DocuSigned by:

p packard

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Signature

11/23/2023

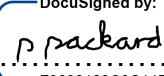
Date

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ITEM 5 - PHYSICAL PRODUCER (Post-Production Lead)	
Physical Producer Name:	Peter Packard
Physical Producer Address:	29 Hamilton Street, Bayswater 6053, WA
Status of Physical Producer (please indicate as applicable)	Is the Physical Producer: ☐ Also, the Producer (contracting party) acting as a sole trader ☐ A director of the Producer (Pty Ltd) (contracting party) ☐ An employee of the Producer (Pty Ltd) (contracting party) ☐ A director and employee of the Producer (Pty Ltd) (contracting party) ☒ None of the Above.
Fee: please indicate which is applicable)	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____; and • AUD\$_____ on _____: ☒ Nominal Fee: AUD\$1.00
Physical Producer Services: (please indicate what services the Physical Producer is commissioned to provide)	☒ Managing the day to day production of the Film ☒ Review/consultation on Script/Treatment ☒ Assisting in the selection of cast/participants, locations/sets, music, etc. ☒ Preparing the Budget and Production Schedule ☒ Managing the engagement of all cast and crew ☒ Completing all reporting requirements ☒ Coordinating the Marketing/Exploitation of the Film ☒ Managing the OH&S compliance of the Film ☒ Coordinating the completion and delivery of the Film Other: _____ (Please note: If more than 1 Physical Producer please provide us with a detailed breakdown of what each physical producer is responsible for)
Engagement Period:	☒ From Commencement of Pre-Production until Delivery of the Film on a non-exclusive but first-priority basis; ☐ Other: _____(Please specify)
Credit:	Producer _____ <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright and sequel and spin-off rights) to the Producer; • Moral rights waivers/consents from Physical Producer for the benefit of the Producer; • Inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below:

Peter Packard

 Name

DocuSigned by:


 Signature

11/23/2023

 Date

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ITEM 6 – SCRIPT EDITOR	
Script Editor Name:	Anna Rochfort
Script Editor Address:	4/37 Etwell Street East Victoria Park 6101
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
Script Editor Services: (please indicate what services the Script Editor is commissioned to provide)	☒ Review and delivery of notes on First Draft Script ☒ Review and delivery of notes on Second Draft Script ☒ Consultation with the Writer, Director and Producer on the creative realisation of the Script ☐ Other:
Credit:	<u>Script Editor</u> <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____ _____

(NOTE: If additional script editors are required please add pages here – note that additional fees may be incurred)

Anna Rochfort

Name

DocuSigned by:

Anna Rochfort

Signature

11/23/2023

Date

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ITEM 7 – Director Of Photography	
Director Of Photography Name:	
Director Of Photography Address:	
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
Director Of Photography Services: (please indicate what services the Director of Photography is commissioned to provide)	☒ Completion of all planning documentation (script breakdown, shot list, storyboards, etc.) ☒ Directing the camera department ☒ Identification and hiring of required camera equipment ☒ Camera operation during principal photography ☒ Consultation with the Director and Producer on the visual realisation of the Script ☒ Consultation with the Gaffer and Production Designer on the visual realisation of the Script ☒ Consultation with the Editor on the visual realisation of the Script ☐ Other: _____
Credit:	Director of Photography _____ <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____ _____

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Name

.....
Signature

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Date

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ITEM 8 – Editor	
Editor Name:	Peter Packard
Editor Address:	29 Hamilton St, Bayswater, WA 6053
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
Editor Services: (please indicate what services the Editor is commissioned to provide)	☒ Completion of all planning documentation (script breakdown, paper edit, etc.) ☒ Data wrangling during principal photography ☒ Editing the video to an assembly stage ☒ Editing the video to a rough cut stage ☒ Editing the video to a fine cut stage ☒ Delivery of the locked-off video edit ☒ Consultation with the Director and Producer on the visual realisation of the Script ☒ Consultation with the Director of Photography on the visual realisation of the Script ☐ Other: _____
Credit:	Editor, Colorist _____ (Please include credit to be provided)
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____ _____

Peter Packard

Name

DocuSigned by:

p packard

Signature

11/23/2023

Date

DocuSigned by:

Yen Arcilla

Signature 1234567890A0...

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ITEM 10 – Gaffer	
Gaffer Name:	
Gaffer Address:	
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
Gaffer Services: (please indicate what services the Gaffer is commissioned to provide)	☒ Completion of all planning documentation (script breakdown, mood board, lighting plan, etc.) ☒ Directing the electrics department ☒ Identification and hiring of required lighting equipment ☒ Operating lights during principal photography ☒ Consultation with the Director and Producer on the visual realisation of the Script ☒ Consultation with the Gaffer and Production Designer on the visual realisation of the Script ☒ Consultation with the Editor on the visual realisation of the Script ☐ Other: _____
Credit:	<u>Gaffer</u> <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____

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Name

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Signature

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Date

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ITEM 11 – Location Sound Recordist, Post Sound	
Location Sound Recordist, Post Sound Name:	Cody Cork
Location Sound Recordist, Post Sound Address:	
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
Location Sound Recordist, Post Sound Services: (please indicate what services the Location Sound Recordist is commissioned to provide)	☒ Completion of all planning documentation (script breakdown, foley list, sound spotting list, sound report etc.) ☒ Directing the sound department ☒ Identification and hiring of required sound equipment ☒ Sound mixing operation and location sound recording during principal photography ☒ Consultation with the Director and Producer on the auditory realisation of the Script ☒ Consultation with the Director of Photography on the auditory realisation of the Script ☒ Consultation with the Editor on the auditory realisation of the Script ☒ Consultation with the Post-Sound Designer on the auditory realisation of the Script ☒ Editing the audio in the online editing process. ☒ Mastering all audio before delivery. ☒ Delivery of the locked-off audio edit
Credit:	Sound Recordist, Supervising Sound Editor <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____

Cody Cork

 Name

.....
 Signature

.....
 Date

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ITEM 12 – 1st Assistant Director	
1st Assistant Director Name:	Jake williams
1st Assistant Director Address:	80 Stirling Street, Perth, WA 6000
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
1st Assistant Director Services: (please indicate what services the 1st Assistant Director is commissioned to provide)	☒ Completion of all script breakdown. ☒ Consultation with the Director, Producer, and Script Editor on the visual realisation of the Script (Above the line development). ☒ Consultation with the Director of Photography, Gaffer, Location Sound and Production Designer on the visual realisation of the Script (Below the line pre-production). ☒ Consultation with the Editor on the visual realisation of the Script. (Post-production planning) ☒ Plan and create the shooting schedule with the Director, Producer, and Director of Photography. ☒ Generate and communicate daily Call Sheets to cast and crew ☒ Directing the set during principal photography ☐ Other: _____
Credit:	<u>1st Assistant Director</u> (Please include credit to be provided)
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____

Jake williams

Name

DocuSigned by:



Signature

11/24/2023

Date

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ITEM 13 – 1st Assistant Camera	
1st Assistant Camera Name:	
1st Assistant Camera Address:	
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
1st Assistant Camera Services: (please indicate what services the 1st Assistant Camera is commissioned to provide)	☒ Identification and hiring of required camera equipment. ☒ Camera operation during principal photography. ☒ Consultation with the Director of Photography, Producer and Director on the visual realisation of the Script. ☒ Assistance to the Director of Photography during Principal Photography. ☐ Other: _____
Credit:	<u>1st Assistant Camera</u> <i>(Please include credit to be provided)</i>
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____

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Name

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Signature

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Date

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ITEM 14 – Graphic Designer. Production Designer	
Graphic Designer Name:	
Graphic Designer Address:	
Fee:	☐ Fixed Fee: AUD\$_____ (excluding GST) to be paid in instalments: • AUD\$_____ on _____: and • AUD\$_____ on _____: OR ☒ Nominal Fee: AUD\$1.00
Graphic Designer Services: (please indicate what services the 1st Assistant Director is commissioned to provide)	☒ Assisting the Production Design Department in completion of all planning documentation (script breakdown, mood board, colour palette, props list etc.) ☒ Manage set design, wardrobe, and make-up during principal photography. ☒ Consultation with the Director and Producer on the visual realisation of the Script. ☒ Consultation with the Director of Photography and Gaffer on the visual realisation of the Script. ☒ Creation of promotional material such as EPK, film poster, promotional assets, social assets, etc. ☐ Other: _____
Credit:	<u>Graphic Designer, Production Designer</u> (Please include credit to be provided)
Standard Contract Terms:	Standard contract terms include: • Full assignment of rights (including copyright) to the Producer; • moral rights waiver/consent from Script Editor for the benefit of the Producer; • Misconduct and the inability to adhere to the agreed terms will result in a review of performance, where termination from the production is a possibility. If any variation to these terms or additional terms required please outline below: _____

.....
 Name

.....
 Signature

.....
 Date

Soapbox - HOD Agreement Terms

ITEM 15 - AGREEMENT TERMS FOR DIVERSITY OR INDIGENOUS STRANDS (Facilitator/Mentors will provide advice and guidance on the requirements for these projects)	
The Diverse and/or Indigenous storyteller/(s) for the Film:	Name/(s):
Diverse and/or Indigenous elements of the Film:	Brief description of what elements of the film contain the diverse storyteller/(s) story and any ICIP elements that may apply:
Rights Ownership (further advice to be sought by Facilitator/Mentors)	The rights for the Film will be in accordance with preferred SAE's Diversity and/or Indigenous Protocols (below are suggestions only): - Percentage of Copyright in completed Film assigned to the Diverse and/or Indigenous storyteller/(s) on completion of Film: % - Diverse and/or Indigenous storyteller/(s) exclusively licence marketing rights in Film to Producer for years. - Producer's Net Profit share: - Diverse and/or Indigenous storyteller/(s): % - Producer: % 100% of Producer's Net Profit to revert to Diverse and/or Indigenous storyteller/(s) after years.

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Name

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Signature

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Date